

EVOB LLC v. Ricuccio Negom, DDS, 24LC-0130

Hearing: Motion for Reconsideration

Date: June 18, 2026

TENTATIVE RULING

EVOB, LLC filed this unlawful detainer action in February 2024, against Ricuccio A. Negom, DDS. After Defendant vacated the premises, Plaintiff filed an amended complaint for breach of contract. Trial occurred in April 2026, and the Court issued a tentative decision on May 7, 2026. The Tentative Decision states, “This Tentative Decision shall be the Court’s proposed Statement of Decision subject to objections filed within 15 days of notice of this Tentative.” (Tent. Dec., p. 4, ll. 18-19.)

Currently on calendar is Defendant’s motion to reconsider the Tentative Decision pursuant to Code of Civil Procedure section 1008. That section applies only when the court has entered an order. (Code Civ. Proc., §§ 1003 [an order is a direction of the judge not included in a judgment], 1008, subds. (a), (e), (h).) Defendant has not provided any authority supporting application of section 1008 at this stage of the proceedings. Even if that procedural mechanism did apply, Defendant has not made the necessary showing for relief under that section. To the extent, Defendant seeks reconsideration under Code of Civil Procedure section 1008, the motion is denied.

Any objections to the Court’s tentative decision should comply with California Rules of Court, rule 3.1590. Subdivision (g) of that rule directs objections be served and filed within fifteen days after the proposed statement of decision and judgment have been served. The Court may then order a hearing on any such objections. (Cal. Rules of Court, rule 3.1590(k).)

The Court treats the motion as an objection. (Mtn., p. 1, l. 20 [“This motion will constitute the objection by Dr. Negom”].) Defendant argues (1) new facts exist to support a finding that the \$7,080 was not received by Plaintiff as a second payment and (2) a new legal argument may be made under section 12.6 of the lease regarding fixtures. The Court will address these objections at the hearing on June 18, 2026, at 10:00 a.m. in department 2.